

STATE OF NEW YORK

10190--A

IN ASSEMBLY

February 12, 2026

Introduced by M. of A. BURROUGHS -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to establishing an overnight residential parking system in the village of Hempstead

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 1640-t to read as follows:

3 § 1640-t. Overnight residential parking system in the village of Hemp-
4 stead. 1. Notwithstanding the provisions of any law to the contrary,
5 the village board of trustees of the village of Hempstead may, by
6 adoption of a local law or ordinance, provide for an overnight residen-
7 tial parking permit system and fix and require the payment of fees
8 applicable to parking within the area in which such parking system is in
9 effect in accordance with the provisions of this section. Such over-
10 night residential parking permit system shall apply to street parking
11 and municipal parking lots within the village of Hempstead.

12 2. No permit shall be required on streets or portions of streets where
13 the adjacent properties are zoned for commercial/retail use.

14 3. The local law or ordinance providing for such overnight residential
15 parking system shall:

16 (a) set forth factors necessitating the enactment of such parking
17 system;

18 (b) provide that motor vehicles registered pursuant to section four
19 hundred four-a of this chapter shall be exempt from any permit require-
20 ment;

21 (c) provide the times of the day during which permit requirements
22 shall be in effect, which shall be during the hours of twelve a.m.
23 through six a.m., or during such other overnight hours as determined by
24 the village of Hempstead;

25 (d) provide the days of the week during which permit requirements
26 shall be in effect;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (e) make not less than twenty percent of all spaces within the permit
2 area available to nonresidents and shall provide for short-term parking
3 of not less than ninety minutes in duration in such area;

4 (f) provide the schedule of fees to be paid for such permits; and

5 (g) provide that such fees shall be credited to the general fund of
6 the village.

7 4. No ordinance shall be adopted pursuant to this section until a
8 public hearing thereon has been had in the same manner as required for
9 public hearings on a local law pursuant to the municipal home rule law.

10 § 2. This act shall take effect immediately.